

cited with those Acts as the Metropolitan Police Acts, 1829 to 1909, and, so far as it amends the Police Act, 1890, may be cited with the Police Acts, 1839 to 1908, as the Police Acts, 1839 to 1909, and so far as it amends the Police (Scotland) Act, 1890, may be cited with the Police (Scotland) Acts, 1857 to 1890, as the Police (Scotland) Acts, 1857 to 1909.

CHAPTER 41.

An Act to enable the punishment of Detention to be substituted for the punishment of Imprisonment for Offences against Naval Discipline under the Naval Discipline Act. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Detention to be substituted for imprisonment as punishment for offences against discipline.

1.—(1) For the purpose of preventing persons subject to the Naval Discipline Act convicted of offences against discipline under that Act, and not dismissed from His Majesty's service, from being subjected to the stigma attaching to imprisonment, there shall be added to the punishments specified in section fifty-two of the Naval Discipline Act the punishment of *detention*, which in the scale of punishments mentioned in that section shall come next before dismissal from His Majesty's service.

(2) The maximum term of detention shall be two years, and a person sentenced to detention shall undergo the term of his detention either in naval detention quarters or in a detention barrack, or partly in one way and partly in another : a person liable to imprisonment in a naval prison may be confined in naval detention quarters, but a person sentenced to detention shall not be confined in a prison.

(3) The Admiralty shall have the same power of setting apart buildings or vessels, or any parts thereof, as naval detention quarters as they have of setting apart such buildings or vessels or parts thereof as naval prisons.

(4) For the purpose of giving effect to the foregoing provisions such amendments shall be made in the Naval Discipline Act as are set forth in the schedule to this Act.

Printing and construction of Naval Discipline Act.

2.—(1) Every enactment and word which is directed by the schedule to this Act to be substituted for or added to any portion of the Naval Discipline Act shall form part of that Act in the place assigned to it by the said schedule, and the Naval Discipline Act, and all Acts which refer thereto, shall

after the commencement of this Act be construed as if that enactment or word had been originally enacted in the Naval Discipline Act in the place so assigned, and, where it is substituted for another enactment or word, had been so enacted in lieu of that enactment or word, and as if the Naval Discipline Act had been enacted with the omission of any enactment or word which is directed by the schedule to this Act to be omitted from that Act, and the expression "this Act" in the Naval Discipline Act shall be construed accordingly.

(2) A copy of the Naval Discipline Act with every such enactment and word inserted in the place so assigned, and with the omission of any portion of that Act directed by the schedule to this Act to be omitted from that Act, shall be prepared and certified by the Clerk of the Parliaments and deposited with the rolls of Parliament, and His Majesty's printers shall print in accordance with the copy so certified all copies of the Naval Discipline Act which are printed after the commencement of this Act.

3.—(1) This Act may be cited as the Naval Discipline Act, 1909. Short title and commencement.

(2) This Act shall come into force on such day or days not being later than the first day of January nineteen hundred and eleven as the Admiralty may appoint, and the Admiralty may appoint different days for different places and stations, and for different provisions of this Act.

SCHEDULE.

MODIFICATIONS OF NAVAL DISCIPLINE ACT.

Provisions of Naval Discipline Act to be amended.	Nature of Amendment.
Sections twenty-three, fifty-three, paragraph (10); fifty-six, subsection (2); seventy-four, subsections (1) and (3); seventy-eight; seventy-nine, and eighty.	The words "or detention" shall be inserted after the word "imprisonment," wherever that word occurs.
Section twenty-three - - -	The words "with or without hard labour" shall be omitted.
Sections forty-seven, forty-eight, and fifty-eight, paragraph (8).	The word "person" shall be substituted for the word "prisoner," wherever that word occurs.

Provisions of Naval Discipline Act to be amended.	Nature of Amendment.
Section fifty-two - - -	After paragraph (4) there shall be inserted the following new paragraph:— “(4A) Detention.”
Section fifty-three - - -	In paragraph (1) after the words “but ^{so} that” there shall be inserted the following words: “neither the degree nor the duration of,” and the word “not” shall be omitted. After paragraph (9) the following new paragraph shall be inserted:— “(9A) The punishment of detention may be inflicted for any term not exceeding two years.” At the end of paragraph (10) the following proviso shall be added:— “Provided that where the punishment awarded is detention for a term not exceeding fourteen days, the sentence may direct that the punishment shall not be accompanied by stoppage of pay or wages during the term of detention.” In paragraph (11), after the words “no officer shall be subject” there shall be inserted the words “to detention or.”
Sections fifty-six, subsection (4); sixty-two; and sixty-three.	The words “person charged,” shall be substituted for the word “prisoner,” wherever that word occurs.
Section sixty-six - - -	After the word “imprisonment” there shall be inserted the words “or, if the offender is a person liable to be sentenced to detention under this Act, by detention.”
Sections seventy and seventy-four, subsection (3).	For the words “his detention” there shall be substituted the words “detaining him.”
Section seventy-two - - -	For the words “during his detention” there shall be substituted the words “while he is detained.”
Section seventy-three - - -	For the words “imprisonment or of” there shall be substituted the words “detention, imprisonment, or.” The word “detention” shall be inserted before the word “imprisonment,” wherever that word occurs in the first paragraph of the section. The words “or detention” shall be inserted after the word “imprisonment,” where it first and secondly occurs in the proviso. The words “in the aggregate” shall be inserted after the words “for any period exceeding.”

Provisions of Naval Discipline Act to be amended.	Nature of Amendment.
Section seventy-three— <i>cont.</i>	For the words "his imprisonment" there shall be substituted the words "the total term of his punishment." The word "any" shall be substituted for the word "either," where that word secondly occurs.
Section seventy-four, subsection (1).	The words "imprisonment or detention" shall be substituted for the words "or of imprisonment." After the words "and may" there shall be inserted the words "in the case of imprisonment." After the words "appointed under this Act" there shall be inserted the words "or naval detention quarters." After the words "military prison" there shall be inserted the words "or detention barrack and may in the case of detention be any naval detention quarters or a military detention barrack."
Subsection (2) - - -	After the words "proper prison," where those words first occur, there shall be inserted the words "or naval detention quarters." After the word "imprisonment" wherever that word occurs, there shall be inserted the words "or detention, as the case may be." After the words "proper prison," where those words secondly occur, there shall be inserted the words "or naval detention quarters, or, in the case of an offender under sentence of detention, to some place at which there are naval detention quarters."
Subsection (3) - - -	After the words "naval custody or" there shall be inserted the words "in the case of a person sentenced to imprisonment."
Section seventy-five - - -	After the words "this Act" there shall be inserted the words "or of any offender undergoing or sentenced to undergo detention." After the words "house of correction," where those words first occur, there shall be inserted the words "or, in the case of an offender undergoing or sentenced to undergo detention, to the naval detention quarters."

Provisions of Naval Discipline Act to be amended.	Nature of Amendment.
Section seventy-five— <i>cont.</i>	After the words "such prison," and after the words "house of correction," where those words secondly occur, there shall be inserted the words "or naval detention quarters."
Section seventy-six - - -	After the words "naval prison" there shall be inserted the words "or naval detention quarters."
Sections seventy-six, seventy-eight, and seventy-nine.	For the word "prisoner," wherever that word occurs, there shall be substituted the word "offender."
Section seventy-eight - - -	For the words "has been imprisoned" there shall be substituted the words "is undergoing imprisonment or detention."
Section seventy-nine - - -	For the words "such detention takes place" there shall be substituted the words "he is so detained."
Section eighty - - -	After the word "imprisoned" there shall be inserted the words "or undergoing detention." After the word "confinement" there shall be inserted the words "or, in the case of a person sentenced to detention, such naval detention quarters."
Section eighty-one, subsection (1).	After the words "as naval prisons" there shall be inserted the words "or naval detention quarters." After the word "apart," where it secondly occurs, there shall be inserted the words "as naval prisons or naval detention quarters, as the case may be." After the words "to be naval prisons" there shall be inserted the words "or naval detention quarters respectively."
Subsection (2) - - -	After the words "naval prisons" there shall be inserted the words "and naval detention quarters respectively." After the words "military prisons" there shall be inserted the words "and detention barracks respectively." After the words "for 'military'" there shall be inserted the words "and of 'naval detention quarters' for 'detention barracks.'"
Section eighty-two - - -	After the words "naval prison" there shall be inserted the words "or any such naval detention quarters." After the word "prisoner," wherever that word occurs, there shall be inserted the words "or person undergoing detention."

Provisions of Naval Discipline Act to be amended.	Nature of Amendment.
Section eighty-two— <i>cont.</i>	After the words "such prison," "the prison," or "said prison," wherever those words occur, there shall be inserted the words "or naval detention quarters."
Section eighty-three . . .	After the word "correction" there shall be inserted the words "or of any naval detention quarters."

CHAPTER 42.

An Act to amend the Law relating to the Occupation and Ownership of Land in Ireland, and for other purposes relating thereto. [3rd December 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

LAND PURCHASE FINANCE.

1.—(1) In the case of advances made in pursuance of future purchase agreements, three pounds ten shillings shall be substituted for three pounds five shillings as the rate of the purchase annuity under section forty-five of the Irish Land Act, 1903 (in this Act referred to as the Act of 1903).

Alteration of amount of purchase annuity and of rate of interest payable to National Debt Commissioners.
3 Edw. 7. c. 37.

(2) So far as respects advances made for future purchase agreements, the rate of interest to be paid by the Land Commission to the National Debt Commissioners under section thirty-six, and by the Congested Districts Board to the Land Commission under section seventy-two, of the Act of 1903, shall be three per cent. per annum, instead of two-and-three-quarters per cent. per annum.

(3) The National Debt Commissioners shall, in the accounts kept by them of the Irish Land Purchase Fund, distinguish between advances made in pursuance of pending purchase agreements and advances made in pursuance of future purchase agreements.

2.—(1) The power of the Treasury to create stock for the purpose of raising money required for the Irish Land Purchase Fund (including the Land Purchase Aid Fund) shall include power to create a new capital stock to be called guaranteed three per cent. stock, and the Treasury may at any time create for that purpose either guaranteed two-and-three-quarters per cent. stock or guaranteed three per cent. stock, as they think fit.

Power to raise new guaranteed three per cent. stock, and provision as to investment by savings bank depositors in stock.